

M/S Shivam Cold Storage v. U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 6 March 2020 · Writ-C No. 6850 of 2020 · **Writ disposed; relegated to CGRF under clause 7.10 with short stay of coercive action.**

HEADNOTE

A writ challenging a UPPCL recovery notice and related order was disposed of because an alternative statutory remedy lay before the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. The Court did not examine merits, allowed a complaint within two weeks to be decided by a reasoned speaking order preferably within four weeks, and stayed coercive action for six weeks or until the Forum decides, whichever is earlier.

FACTUAL SUMMARY

M/S Shivam Cold Storage filed a writ petition in the Allahabad High Court seeking certiorari to quash a recovery notice dated 21 January 2020 issued by respondent no. 2 of U.P. Power Corporation Ltd., and mandamus restraining implementation of an order dated 17 January 2020 and that notice. Counsel for the Corporation submitted that the petitioner had an alternative statutory remedy of complaint before the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. Counsel for the petitioner could not rebut that contention.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF alternate remedy for recovery-notice grievance

HOLDING

A writ petition seeking to quash a recovery notice and restrain a related order is not maintainable where the consumer has an unexhausted statutory remedy of complaint before the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. The Court declined to entertain the petition, directed that a complaint filed within two weeks be considered and decided by a reasoned speaking order after hearing, preferably within four weeks, stayed coercive action on the recovery notice for six weeks or until the Forum decides, whichever is earlier, and made the stay contingent on approaching the Forum within the stipulated period, without examining the merits. ¶ 5-8

PRINCIPLE TAGS

alternate-remedy-clause-7.10 Writ against a UPPCL recovery notice and related order declined because Clause 7.10 supplied an alternative statutory complaint to the CGRF, which the petitioner had not availed. ¶ 3-5

cgrf-7.10-alternate-remedy The Court relegated the consumer to the CGRF under Clause 7.10, with a two-week window to file and a direction to decide by reasoned order preferably within four weeks. ¶ 5

clause-7.10-forum-ombudsman-route-for-billing-grievances Challenge to a recovery notice and the order founding it was treated as a grievance for the Clause 7.10 forum route rather than writ examination on merits. ¶ 3-5

consumer-grievance-redressal-forum-remedy-clause-7.10 Clause 7.10 CGRF was held the proper statutory forum; coercive recovery was stayed only while that remedy was pursued in time. ¶ 5-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY NOTICE DATED 21 JANUARY 2020 AND THE ORDER DATED 17 JANUARY 2020

The Court expressly declined to enter into the merits and left them to the CGRF. ¶ 8

